

NATIONAL AGENCY FOR EXAMINATIONS (NAE) NATIONAL EXIT
EXAMINATION FOR STUDENTS OF ETHIOPIAN LAW SCHOOLS
2003- 2015 E.C ACADEMIC YEAR Jurisprudence

1. One of the following sentences is incorrect.
 - A. Realists give emphasis to statutes more often than to the judge's beliefs
 - B. Natural law school believes in the existence of some higher moral values
 - C. Positivists put the sovereign power at the center of the legal system
 - D. None
2. Kelsen's grand norm is equivalent to:
 - A. The Constitution
 - B. To the dominating attitude of the society
 - C. The whole body of positive law of a country
 - D. Universal and unchanged higher laws
3. One of the following is false about realist school of jurisprudence
 - A. law is simply the prediction of what the courts will do
 - B. the life of the law is experience rather than logic and reason
 - C. realists put the judge at the center of the legal system
 - D. realists do not accept the separation thesis
4. One of the following is not included among Fuller's inner morality of law
 - A. Generality of laws
 - B. Publication of laws
 - C. Retroactivity of laws
 - D. Consistency of laws
 - E. none

5. One is not considered as one of Fuller's inner morality of law:
- A. Consistency
 - B. Generality
 - C. Non-retroactivity
 - D. Flexibility
6. The FDRE Constitution forbids the sale of land. Nevertheless, Mr. Kebede has observed that people in Ethiopia are indeed selling land. Based on this observation, he has concluded that informal land tenure rules are more forceful than that part of the FDRE Constitution which outlaws land sale. Within the purview of which school of jurisprudence might Mr. Kebede's conclusion fall?
- A. Sociologist
 - B. Positivist
 - C. Naturalist
 - D. Realist
7. One of the following assertions is incorrect
- A. Legal realists give more emphasis to statutes than to the judge's beliefs
 - B. Legal positivists put the sovereign at the center of the legal system
 - C. Naturalists (followers of natural law school) blend law and morality
 - D. Legal realists put the judge at the center of the legal system
8. Which one of the following thinkers is credited for articulating the harm principle?
- A. John Austin
 - B. John Mill
 - C. Jeremy Bentham
 - D. Hans Kelsen
9. Identify a factor that distinguishes legal norms from non-legal norms such as morality:
- A. Normativity
 - B. Generality
 - C. Enforceability
 - D. Validity

10. One of the following is false about John Rawls philosophy of justice.
- A. Rawls first principle of justice has priority over his second principle of justice.
 - B. In Rawls theory, the people in the veil of ignorance have full information about their interests and status.
 - C. The original position in Rawls theory is the original social contract.
 - D. In Rawls philosophy, there is the possibility of unequal distribution of material wealth among the different members of society.**
 - E. None.
11. Which one of the following is incorrect about the positivist school of law?
- A. The only legitimate sources of law are those written rules, regulations, and principles that have been expressly enacted, adopted, or recognized by a government body.
 - B. Law should be studied separately from morality and justice.
 - C. All laws should be written and codified to be predictable.
 - D. The validity of a law depends on its content.
 - E. Morality and justice are unimportant in the study of law.**
12. One of the following is false about Hobbes's state of nature
- A. In the state of nature, man lives in state of war.
 - B. In the state of nature, every man has unlimited right to everything.
 - C. In the state of nature, creation of private property was possible.**
 - D. In the state of nature, the first law of nature was preserving oneself.
 - E. The Hobbesian man is evil in nature.

13. One of the following sentences about Socrates' speech is *incorrect*.

- A. It is just to obey the command of god rather than that of a state.
- B. Obey a command as far as it is legal and just.
- C. It is unjust to return harm for harm.
- D. When the laws unjustly treat you, you can respond to them in a similar fashion.**
- E. A citizen tacitly agrees to respect laws by continuously living in the country.

14. One of the following sentences is *not sound*.

- A. Legal realists give emphasis to statutes more often than to the judge's beliefs.**
- B. Natural law school believes in the existence of some higher moral values.
- C. Positivists put the sovereign power at the centre of the legal system.
- D. Natural law blends law and morality.
- E. Legal realists put the judge at the center of the legal system.

15. Which one of the following statements is *false* about Locke's state of nature argument?

- A. Locke's state of nature is a perfect state of equality and freedom.
- B. In the state of nature men were judges in their own case.
- C. Locke favors absolute sovereign.**
- D. In the Locke's state of nature, creation of private property was possible.
- E. The sole purpose of establishing a state, according to Locke, is to protect private property.

16. One of the following is not the defects of Hart's primary rules.

- A. Lack of certainty
- B. Being static
- C. Absence of dispute settlement mechanism**
- D. Existence of executive body that enforces the laws
- E. Inflexibility of rules

17. All but one of the following assertions is not true about historical school of jurisprudence.

- A. Von Savigny declared that law originates, like language, from the customs and convictions of ancient society..**
- B. Henry Maine stated that the origins of legal development can be traced to religion and ritual**
- C. In the six stage pattern of Henry Maines' legal development, equity becomes the final developmental stage.**
- D. Compared to others, Henery Maines's conclusion on historical legal theory is based on empirical (comparative law) studies.**
- E. Historical School conceives a nation's law as tied to the primitive consciousness of its people.**

18. Which one of the following is incorrect about the positivist school of law?

- A. The only legitimate sources of law are those written rules, regulations, and nprinciples that have been expressly enacted, adopted, or recognized by the sovereign.**
- B. Law should be studied separately from morality and justice.**
- C. All laws should be written and codified to be predictable.**
- D. The validity of a law depends on its content.**
- E. Morality and justice are unimportant in the study of law.**

19. Identify the wrong statement about the nature of law as advocated by the natural law school of law.

- A. Natural law is discoverable by human reason without reference to specific legislation.**
- B. Natural law principles are superior to the laws made by man.**
- C. According to natural law ,if state law is contrary to natural law ,obey state law and save your life.**
- D. Natural law is valid irrespective of space and time.**
- E. The validity of human law depends upon its harmony with principles of natural law.**

20. One Of the following assertions one is not true about historical school of jurisprudence.

- A. Savigny declared that law originates, like language, from the customs and convictions of ancient society.
- B. Henry Maine stated that the origins of legal development can be traced to religion and ritual.
- C. In Savigny theory, it was the jurists who play the important role in the Roman law development.
- D. For Henry Maines, the English parliament was the source of all laws in England.
- E. Historical School conceives a nation's law as tied to the primitive consciousness of its people.

21. Choose the wrong statement from among the following.

- A. Social habits do not have internal aspect of law.
- B. Social habits do not have external aspect of law.
- C. Primary rules are not effective without secondary rules.
- D. John Austin's and Thomas Hobbes' sovereigns are similar in nature.
- E. Natural law has been revived in the 20th century.

22. Among the many philosophers, one is responsible for creating the separation thesis (is and ought) under positivist school of jurisprudence.

- A. John Austin
- B. David Hume
- C. Jeremy Bentham
- D. H.L.A. Hart
- E. Hans Kelsen

23. One of the following is false about Hobbes's state of nature.

- A. Man lives in state of war.
- B. Every man has unlimited right to everything.
- C. Creation of private property was possible.
- D. The first law of nature was preserving oneself.
- E. The Hobbitian man is evil in nature.

24. Which one of the following statements is considered as a criticism made against natural law principle?

- A. Natural law does not put restraints on absolute power of sovereigns.
- B. Natural law is not detectable unless written down in codes.
- C. Natural law completely undermines state law.
- D. Natural law mixes up value and reality.**
- E. Natural law is impracticable.

25. One of the following sentences about Socrates' speech is not correct.

- A. It is just to obey the command of god rather than that of a state.
- B. Obey a command as long as it is legal and just.
- C. It is unjust to return harm for harm.
- D. When the laws unjustly treat you, respond in kind to make justice.**
- E. A citizen has an implied agreement with the laws by continuously living in the country.

26. Which one of the following statements is false in connection with John Locke's state of nature?

- A. His state of nature is a perfect state of equality and freedom.
- B. In his state of nature, men were judges in their own case.
- C. Locke favors an absolute sovereign.**
- D. In his state of nature, creation of private property was possible.
- E. The sole purpose of establishing a state is to protect private property.

27. Which one of the following is not the contribution of the Stoics natural law philosophy?

- A. They contributed towards the application of Roman law to all men around the world.
- B. The idea of international law
- C. The need for country Eased and specific laws**
- D. The conception of universal law under which all men are equal
- E. The fact that reason and human nature became guiding principles in problem solving

28. Examine Ronald Dworkin's major criticisms against H. L. A. Hart's positivism. (10 %)

29. Which statement is incorrect regarding the resurgence of natural law theory?

- A. The revival of the natural law theory has direct relation with the Nazi war atrocities of the Second World War.
- B. The theory gained support as a result of the question raised by jurists over the adequacy of the positive law to protect human kind.
- C. The theory gained much acceptance for advocating that legal rules derive their legitimacy from universal moral principles.
- D. The theory advocates that law is based upon the desire of the sovereign.**
- E. Natural law theory received much acceptance for it advocates that natural law is superior to all other laws.

30. The theory of legal positivism by contrast to natural law theory holds that:

- A. Law exists before the existence of any state.
- B. There exists a necessary connection between law and morality.
- C. Law owes its existence to the higher moral principles.
- D. We should focus not upon what the law ought to be, but upon what the law is.**
- E. Custom, religion and morality are the sources of law.

31. One of the following thinking is NOT valid regarding legal realism:

- A. It states that legal rules are capable of yielding uniquely correct answer in any of the cases that come before the courts.
- B. It holds that there are so many different rules potentially relevant to any legal case that there is always support for both sides in a legal argument.**
- C. It assumes that there are always conflicting ways of interpreting precedents and statutes.
- D. It holds that judges should focus on the economic and social consequences of their decision.
- E. It confirms that judicial choices should be informed by research in disciplines such as sociology and economics.

32. Which one of the following statement is incorrect regarding the idea of law of Stoic philosophy?

- A. Law is the highest reason, implanted in nature, which commands what ought to be done and forbids the opposite.
- B. True law is right reason in agreement with nature.
- C. To curtail the true law is unholy, to amend it illicit, to repeal it impossible.
- D. Law summons to duty by its commands, and averts from wrong doing by its prohibition.
- E. Law is what the judges do in courts.**

33. The theory of critical legal studies, like legal realism, claims that:

- A. Law is created by the legislature.
- B. The ultimate source of a given law is morality.
- C. If a given law fails to be backed by reason, then it shall be disregarded.
- D. True law is right reason in agreement with nature.
- E. Law is a tool of injustice, and that the liberal values underlying the law are neither coherent nor desirable.**

34. From the given alternatives identify the wrong comparison between analytical school and historical school.

A. For analytical school, law owes its existence to state while historical school believes that law existed before any state.

B. For analytical school legislation is the sources of law but for historical school custom is the source of law.

C. Analytical school states that law is found not made whereas for historical school law is command of the sovereign and it is made as a result of the king's free will.

D. Analytical school states that law is upon the desire of the ruler, but for historical school law conforms to popular consciousness.

E. Analytical school advocates for legal reform through legislation in contrast historical school discourages creative legal reform.

35. The Marxists like the positivists and realists agree that law is:

A. God made.

B. Human made.

C. Unnecessary evil created to protect private property.

D. There to serve only the highest class in the society.

E. Found not made.

36. The Sociological School of Jurisprudence holds that:

A. We should look more to the abstract content of the law than to its function.

B. We should attach great importance to legislative action than judicial action.

C. Law does not need to confirm to popular consciousness.

D. We should be concerned not with "law in books" but with "law in action".

E. The source of law is super natural being.

37. The theory of historical school of jurisprudence in contrast to that of the analytical school holds that

- A. custom is the source of law.**
- B. custom has no place in law.
- C. law depends upon the desire of the ruler.
- D. law owes its existence to higher moral principles.
- E. law owes its existence to the state.

38. A school of jurisprudence which considers judges as the true law makers is

- A. Legal positivism.
- B. Stoicism.
- C. Legal realism.**
- D. Feminist legal theory.
- E. Natural law theory

39. Which one of the following stipulation is FALSE about the idea of law of Stoic philosophy?

- A. Law is the highest reason implanted in nature.
- B. Law is the highest product of the human mind.**
- C. True law is right reason in agreement with nature.
- D. Curtailing the true law is unholy.
- E. Amending or repealing the true law is impossible.

40. Identify the statement that is NOT sound.

A. As per the teaching of the natural law theory, law is more than the mere exercise of power by the ruler over the ruled; it may simply be objective principles of morality and justice.

B. Legal positivists **insist** that we should focus on what the law ought to be, but not on what the law is.

C. The purpose of the philosophy of law is to explain the real laws of the expositors not the criticism of the censors.

D. The theory of critical legal studies sees law as a tool of injustice, and believes that liberal values underlying the law are neither coherent nor desirable.

E. Radical feminists focus on the equality between men and women believing in the capacity of law to achieve justice.

41. Which one of the following is the correct correlation of the legal theory with the legal philosopher?

A. Law as social fact: Hans Kelsen

B. Law as norms: Joseph Raz

C. Law as social rules: Ronald Dworkin

D. Law as commands: J. Bentham and J. Austin

E. Law as interpretation: H.L. A. Hart

42. Whenever there is a conflict between the law of nature and the law of man, Cicero, advises that:

A. the law of man should always be overruled by the law of nature.

B. the law of nature shall be disregarded if it is contrary to the law of man.

C. the law of man which did not conform to 'reason' might still be regarded as valid.

D. the law of man is the higher law if it is promulgated by elected officials.

E. the law of nature should be subordinate to the law of man.

43. Which one of the following best describes the normative legal theory?

A. It seeks to explain what the law is, and why, and its consequences.

B. It is concerned with what the law ought to be.

C. It is all about facts, but not about values.

D. It attempts to explain why the law is as it is.

E. It is concerned with the consequences that are likely to follow from a set of legal rules.

44. Which statement is incorrect regarding the meaning of the concept and the function of law as per both classical and contemporary jurisprudential thoughts?

A. It consists of a set of universal moral principles in accordance with nature.

B. It is simply a collection of largely man-made, valid rules, commands, or norms.

C. It has a specific purpose such as the protection of individual rights and the attainment of justice.

D. It serves as an instrument to bring economic, political, and sexual equality.

E. It attempts to explain why the law of nature is as it is.

45. The theory of critical legal studies, like legal realism, claims that:

A. law is created by the legislature.

B. the ultimate source of a given law is morality.

C. if a given law failed to be backed by reason, then it should be disregarded.

D. true law is right reason in agreement with nature.

E. law is a tool of injustice, and that the liberal values underlying the law are neither coherent nor desirable.

46. Which of the following schools of thought is associated with the 'separation thesis'?

A. Natural Law

B. Positive Law

C. Realism

D. Stoicism

E. Historical

47. The American conception of legal realism may not be represented by one of the following characteristics.

A. The conception of law as an end in itself.

B. The conception of law in flux, of moving law, and of judicial creation of law.

C. The conception of society in flux.

D. Distrust of traditional rules and concepts insofar as they purport to describe what either courts or people are actually doing.

E. An insistence on evaluation of any part of the law in terms of its effect.

48. Which of the following is correct about Austin's conception of the law?

A. Law is defined as divine revelation.

B. Law is made by an authority to be imposed on the people for obedience.

C. Positive law is intermingled with positive morality.

D. Law is discoverable by cosmic reason.

E. Law is made through societal consensus for it to be binding.

49. According to Lon F.Fuller, the basic function of law is to

- A. establish the minimal standard below which no one can depart form.**
- B. prescribes for people to reach the highest possible level of achievement in their engagement.**
- C. prescribe for people to become inherently benevolent.**
- D. provide the highest standard of conduct that anyone should meet.**
- E. establish standard rules that will govern the salvation of the people.**

50. Which of the following jurists is associated with the notion of law as enshrined in the spirit of the people?

- A. Eugen Ehrlich**
- B. Henry Maine**
- C. Von Savigny**
- D. R E. H.L.A.Hart oscoe Pound**

51. Which of the following statements is correct about Hobbesian, and Loce State of Nature?

- A. Both Locke and Hobbes envisaged the absence of government making the lives of human beings an absolute joy.**
- B. Both Hobbes and Locke believed in the inherent goodness of human beings.**
- C. Both Locke and Hobbes believed in the necessity of establishing government through coercive power.**
- D. Both Locke and Hobbes believed in the necessity of establishing government through social contract.**
- E. Both Hobbes and Locke developed their thesis after passing through same experiences.**

52. Which of the following statement is false?

- A. The adherent of natural law believes that the principles of natural law are higher than the law made by man.**
- B. Natural law maintains that as man is part of nature with natural ends, a law that runs counter to the natural ends of man is invalid.**
- C. Natural law holds that as peace assists the ends of human beings, human beings should strive to maintain peace.**
- D. The principles of natural law are constant since human beings' natural ends are the same for all humankind, and remain the same for all time.**
- E. Natural law holds that the principles of natural law exist only in enactments.**

53. One of the following is incorrect about the distinction between law and morality.

- A Law is developed through non-deliberative action whereas morals develop through deliberative process.**
- B. Laws take the external acts of a person into consideration whereas morals look to factors like inner determination and direction of the will.**
- C. Law is enforced by way of external coercion whereas morals appeal to the free will of an individual.**
- D. Law is concerned with the individual liberty of a person whereas morality deals with the collective ideas of what is good and bad.**
- E. Law regulates the conduct of a person as long as one is a member of a specific community whereas morals guide the conduct of a person even when one is all alone.**

54. One of the following assertions is incorrect.

- A. Naturalists (followers of natural law school) blend law and morality.-
- B. Legal realists give more emphasis to statutes than to the judge's beliefs.**
- C. Legal positivists put the sovereign at the center of the legal system.
- D. Legal realists put the judge at the center of the legal system.Hirce
- E. Sociologists are concerned with the nature and origin of law than with its actual functions and end results.

55. Which one of the following modern law or legal theory was not derived mainly from Stoic philosophy?

- A. The conception of a universal law for all mankind under which all men are equal.
- B. The idea of a method of deriving universal principles of law from the observation of the laws of different people.
- C. Principle of Private Law.**
- D. The conception of a law binding upon all states.
- E. Principle of International law.

56. Which one of the following is not the feature of sociological school of jurisprudence?

- A. Concerned less with the nature and origin of law.
- B. Seeks to view law within a broad social context_
- C. Concerned with the actual effects of the law upon the attitudes of a particular society.
- D. Concerned with actual enactment of legislation by the authority.**

57. Article 40 (3) of FDRE Constitution forbids the sale of land stating that “...Land is a common property of nations, nationalities and peoples of Ethiopia and shall not be subject to sale or other means of exchange. "Nevertheless, Mr. A has observed that people in Ethiopia are indeed selling land. Based on this observation, he has concluded that informal land tenure rules are more forceful than that part of the FDRE Constitution which outlaws land sale. Under which school of jurisprudence might Mr.A's conclusion fall?

A. Sociologist

B. Positivist

C. Naturalist

D. Realist

E. Historical

G-MANs

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